

Dulare Prasad Tiwari v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 February 2021 · Writ-C No. 4684 of 2021 · Writ - C No. 4684 of 2021
· **Writ disposed; file brother's NOC; authority to decide in six weeks.**

HEADNOTE

On a challenge to a 28 December 2020 letter threatening disconnection of a deceased father's tubewell connection unless a co-heir's consent affidavit was filed, the Division Bench did not examine the letter on merits. It directed the petitioner to submit a no-objection certificate supported by his brother's affidavit within two weeks, and the competent authority then to decide the mutation/transfer as expeditiously as possible, preferably within six weeks of receipt, in accordance with law.

FACTUAL SUMMARY

The petitioner's father held a tubewell electricity connection and died on 11 January 2018 leaving two sons. The petitioner applied to transfer the connection into his name under the Electricity Supply Code, with his brother's consent letter and affidavit, and thereafter paid the bills. On 28 December 2020 the licensee required a further brother's-consent affidavit on a complaint, failing which it threatened disconnection. The petitioner challenged that letter as harassment, alleging the complaint's date was undisclosed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4544

mutation / transfer of tubewell connection after death of consumer

HOLDING

The writ is disposed of by directing the petitioner to submit a no-objection certificate supported by an affidavit of his brother, with a copy of the order, within two weeks; on receipt the competent authority shall decide the mutation/transfer of the tubewell connection as expeditiously as possible, preferably within six weeks thereafter, in accordance with law.

¶ 1

FLAG Counsel invoked 'Electricity Supply Code - 4544' in the prescribed format; the order does not identify a numbered Supply Code clause, and '4544' is recorded as spoken rather than a verified clause number.

PRINCIPLE TAGS

mutation-after-death-coheir-noc-then-decide-in-law Where mutation of a deceased consumer's tubewell connection was opposed by a co-heir complaint and disconnection was threatened unless a further consent affidavit was filed, the Court required the applicant-heir to file a co-heir NOC with affidavit and left the licensee to decide the transfer in accordance with law, without construing the Supply Code or quashing the impugned letter. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 28 DECEMBER 2020 LETTER THREATENING DISCONNECTION, AND WHETHER A CO-HEIR COMPLAINT JUSTIFIED IT

The Court neither quashed nor upheld the letter; it only directed a fresh NOC and a decision in accordance with law. ¶ 1

NOT DECIDED — WHETHER THE TUBEWELL CONNECTION WAS TO BE MUTATED INTO THE PETITIONER'S NAME AS OF RIGHT

Merits of the transfer application were left to the competent authority. ¶ 1

